

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JAMIE GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, PO. ANTHONY
MINICHINI, TAX ID #965342, P.O. MICHAEL
DUNN, TAX ID #955894 and P.O. BRIAN
NELSON, TAX ID #957895,

Defendants.

Index No.: _____
Date of Purchase: _____
Plaintiff designates
QUEENS COUNTY
as the place of trial

SUMMONS

The basis of venue
Residence of defendants

-----X
To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
January 2, 2024

Yours, etc.,

THE KATSORHIS LAW FIRM, P.C.
Attorneys for plaintiff JAMIE GRAY
Office and P.O. Address, Telephone
77-53 Main Street
Flushing, New York 11367
(718) 591-6900

Defendants' addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. ANTHONY MINICHINI, TAX ID# 965342
c/o Narcotics Borough Queens South
71-01 Parsons Boulevard
Fresh Meadows, New York 11365

P.O. MICHAEL DUNN, TAX ID#955894
c/o Patrol Borough Queens South Public Safety Teams
71-01 Parsons Boulevard
Fresh Meadows, New York 11365

P.O. BRIAN NELSON, TAX ID#957895
c/o Patrol Borough Queens South Public Safety Teams
71-01 Parsons Boulevard
Fresh Meadows, New York 11365

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:
JAMIE GRAY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. ANTHONY MINICHINI,
TAX ID #965342, P.O. MICHAEL DUNN, TAX ID #955894,
and P.O. BRIAN NELSON, TAX ID# 957895,

Defendants.

-----X

Plaintiff, JAMIE GRAY, complaining of the defendants by his attorneys THE KATSORHIS LAW FIRM, P.C., respectfully shows to this Honorable Court and alleges as follows:

FIRST: That at all times hereinafter mentioned, plaintiff JAMIE GRAY was and still is a resident of Valley Stream, in the County of Nassau, State of New York.

SECOND: That this is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of a right, privilege and immunity secured to the plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States (including R.S. 1979, 42 U.S.C. Sec. 1981, 1983 and 1985) and arising under the laws and statutes of the State of New York.

THIRD: Upon information and belief, that at all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

FOURTH: Upon information and belief, that at all times hereinafter mentioned, defendant THE CITY OF NEW YORK, is a municipal corporation which maintains the New York

City Police Department, pursuant to law.

FIFTH: Upon information and belief, that at all times hereinafter mentioned, defendant THE CITY OF NEW YORK, its agents, servants, and employees maintained and controlled the New York City Police Department, including all of the police officers thereof.

SIXTH: Upon information and belief, that at all times hereinafter mentioned, defendant THE CITY OF NEW YORK, its agents, servants, and employees operated the New York City Police Department.

SEVENTH: That at all times hereinafter mentioned and on and prior to the 4th day of January, 2023 and continuing at various times and places, defendant ANTHONY MINICHINI, TAX ID #965342, P.O. MICHAEL DUNN, TAX ID #955894, and P.O. BRIAN NELSON, TAX ID# 957895, were employed by defendant THE CITY OF NEW YORK, as police officers.

EIGHTH: That this action arises under the United States Constitution, particularly under the provisions of the Fourth, Sixth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil Rights Act, title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

NINTH: Each and all of the acts of defendants alleged herein were done by the defendants, their agents, servants, and employees, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of Queens, and under the authority of their office as police officers for said City, State and County.

TENTH: That the plaintiff timely filed a Notice of Claim against defendant

THE CITY OF NEW YORK on the 17th day of March, 2023 and was issued Claim No. 2023PI008613.

ELEVENTH: That pursuant to §50(h) of the General Municipal Law, the plaintiff appeared for a hearing on the 31st day of July, 2023.

TWELFTH: That more than thirty (30) days have elapsed since the Notice of Claim was filed and THE CITY OF NEW YORK has neglected and refused to make any adjustments or payment thereof.

THIRTEENTH: That this action is being commenced within one year and ninety (90) days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION

FOURTEENTH: Plaintiff, JAMIE GRAY, repeats, reiterates and realleges each and every allegation contained in paragraphs marked FIRST through THIRTEENTH with the same force and effect as if more fully and at length set forth herein.

FIFTEENTH: That commencing on or about 8:00 P.M. on the 4th day of January, 2023, and continuing thereafter at various times and locations, including but not limited to the 105th Police Precinct in the County of Queens, City and State of New York, while the plaintiff was lawfully and properly in front of the premises known and designated as 7 Chestnut Lane, Valley Stream, New York 11580, the defendants, P.O. ANTHONY MINICHINI, TAX ID #965342, P.O. MICHAEL DUNN, TAX ID #955894, and P.O. BRIAN NELSON, TAX ID# 957895, their agents, servants and employees, acting under the scope of their employment, within the scope of their authority, and without any reasonable cause or lawful or proper reason, stopped the plaintiff thereat, and unlawfully and falsely detained, arrested and imprisoned the plaintiff; the plaintiff was in fear of bodily harm and the defendants, their agents, servants and employees did touch the

plaintiff without his consent; that said defendants did intend to confine plaintiff; plaintiff was conscious of such the confinement and did not consent to the confinement, and the confinement as not otherwise privileged; that the defendants, their agents, servants and employees falsely charged the plaintiff with violating various sections of the Vehicle and Traffic Law of the State of New York, including VTL Sec. 1212; that the defendants, their agents, servants and employees maliciously detained the plaintiff without any just right or grounds therefore; that the defendants, their agents, servants and employees, acting in the performance of their employment and within the scope of their authority, executed false complaints, affidavits and instruments, including a Criminal Court Summons; that plaintiff's false arrest and imprisonment commenced on January 4, 2023 at approximately 8:00 p.m. and did continue up to and including the time of the plaintiff's release from the 105th Police Precinct, in the County of Queens, City and State of New York on January 4th, 2023 at approximately 11:00 p.m.; that the Criminal Court of the City of New York, County of Queens, determined that the New York City Police Department failed to file a legally acceptable accusatory instrument against the plaintiff, Jamie Gray, as of February 6, 2023 and advised the plaintiff not to return to Court.

SIXTEENTH: That the said arrest and imprisonment was caused by the defendants, their agents, servants and employees without any warrant or other legal process and without authority of the law and without reasonable cause or belief that the plaintiff was in fact guilty of any crime or unlawful act.

SEVENTEENTH: That because of the false accusations made by the defendants, their agents, servants, and employees, with full force of arms, they forcibly and violently seized, assaulted, and laid hold of and caused the plaintiff to be arrested, detained, and imprisoned at or near the aforementioned location, and continuing at such other places where the plaintiff was

unlawfully detained and imprisoned and searched by the defendants.

EIGHTEENTH: That because of the false accusations made by the defendants, their agents, servants, and employees, with full force of arms, they forcibly and violently seized, assaulted, and laid hold of and caused the plaintiff to be arrested, detained and imprisoned.

NINETEENTH: That the defendants, their agents, servants, and employees, acting in the performance of their employment, and without any probable or reasonable cause, caused the arrest and false imprisonment of the plaintiff even though the defendants, their agents, servants and employees, acting in the performance of their employment and within the scope of their authority, should have been aware that the plaintiff was innocent of such charges.

TWENTIETH: That on or about the 4th day of January, 2023, the defendants, their agents, servants and employees, acting under their employment and within the scope of their authority, should have been aware that the plaintiff was innocent of such charges.

TWENTY-FIRST: That the plaintiff was wholly innocent of said criminal charges and was forced by the defendants to submit to the aforesaid arrest and imprisonment and indignities and humiliation thereto entirely against his will.

TWENTY-SECOND: That by reason of the aforesaid, the amount of damages sought exceeds the jurisdictional limits of all lower courts, which would otherwise have had jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

TWENTY-THIRD: Plaintiff, JAMIE GRAY, repeats, reiterates and realleges each and every allegation contained in paragraphs marked FIRST through TWENTY-SECOND with the same force and effect as if more fully and at length set forth herein.

TWENTY-FOURTH: That commencing on or about 8:00 P.M. on the 4th day of

January, 2023, while the plaintiff was lawfully and properly in front of the premises known and designated as 7 Chestnut Lane, Valley Stream, New York 11580, the defendants, P.O. ANTHONY MINICHINI, TAX ID #965342, P.O. MICHAEL DUNN, TAX ID #955894, and P.O. BRIAN NELSON, TAX ID# 957895, their agents, servants and employees, acting under the scope of their employment, within the scope of their authority, and without any reasonable cause or lawful or proper reason, stopped the plaintiff thereat, and brutally and maliciously assaulted and battered the plaintiff in that they have the real and apparent ability to cause imminent harmful or offensive contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff and that act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff, in and about his neck, neck, back, body and limbs, causing the plaintiff, JAMIE GRAY, to sustain severe, serious and permanent injuries.

TWENTY-FIFTH: That the aforesaid violent, vicious, and brutal assault, attack, battery, abuse and beating of the plaintiff by the aforementioned defendants, their agents, servants, and employees, was unprovoked and completed without any justification or reason for same.

TWENTY-SIXTH: That as a result of the foregoing, the plaintiff was severely injured in and about his head, neck, back, body and limbs, suffered, still suffers and will, upon information and belief, continue to suffer great physical and mental pain and anguish, and he was rendered sick, sore, lame and disabled and so remains, and he was confined to bed and home and will, upon information and belief, be so confined in the future and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended divers sums of money in an effort to cure himself of said injuries and will, upon information and belief, expend further sums in that direction and the said plaintiff has been otherwise damaged.

TWENTY-SEVENTH: That by reason of the aforesaid assault and battery upon the plaintiff, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have had jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

TWENTY-EIGHTH: Plaintiff, JAMIE GRAY, repeats, reiterates and realleges each and every allegation contained in paragraphs marked FIRST through TWENTY-SEVENTH with the same force and effect as if more fully and at length set forth herein.

TWENTY-NINTH: That commencing on or about 8:00 P.M. on the 4th day of January, 2023, and continuing thereafter at various times and locations, including but not limited to the 105th Police Precinct in the County of Queens, City and State of New York, while the plaintiff was lawfully and properly in front of the premises known and designated as 7 Chestnut Lane, Valley Stream, New York 11580, the defendants, P.O. ANTHONY MINICHINI, TAX ID #965342, P.O. MICHAEL DUNN, TAX ID #955894, and P.O. BRIAN NELSON, TAX ID# 957895, their agents, servants and employees, acting under the scope of their employment, within the scope of their authority, and without any reasonable cause or lawful or proper reason, stopped the plaintiff thereat, and unlawfully and falsely detained, arrested and imprisoned the plaintiff; the plaintiff was in fear of bodily harm and the defendants, their agents, servants and employees did touch the plaintiff without his consent; that said defendants did intend to confine plaintiff; plaintiff was conscious of such the confinement and did not consent to the confinement, and the confinement as not otherwise privileged; that the defendants, their agents, servants and employees falsely charged the plaintiff with violating various sections of the Vehicle and Traffic Law of the State of New York, including VTL Sec. 1212; that the defendants, their agents, servants and employees maliciously detained the plaintiff without any just right or grounds therefore; that the defendants, their agents, servants and employees, acting in the performance of their employment

and within the scope of their authority, executed false complaints, affidavits and instruments, including a Criminal Court Summons; that plaintiff's false arrest and imprisonment commenced on January 4, 2023 at approximately 8:00 p.m. and did continue up to and including the time of the plaintiff's release from the 105th Police Precinct, in the County of Queens, City and State of New York on January 4th, 2023 at approximately 11:00 p.m.; that the Criminal Court of the City of New York, County of Queens, determined that the New York City Police Department failed to file a legally acceptable accusatory instrument as of February 6, 2023 and advised the plaintiff not to return to Court.

THIRTIETH: That the said false arrest and imprisonment, assault and battery, and unlawful search, was caused by the defendants, their agents, servants, and employees, without any warrant or other legal process and without authority of the law and without reasonable cause or belief that the plaintiff was in fact guilty of such crimes.

THIRTY-FIRST: That the defendants, their agents, servants and employees, acting in the performance of their employment, and without any probable or reasonable cause, caused the arrest and false imprisonment of the plaintiff even though the defendants, their agents, servants and employees, acting in the performance of their employment and within the scope of their authority, should have been aware that the plaintiff was innocent of such charges.

THIRTY-SECOND: That by reason of the aforesaid unlawful arrest and imprisonment, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body, and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community, and the said plaintiff has been otherwise damaged.

THIRTY-THIRD: That the plaintiff was wholly innocent of said criminal

charges and was forced by the defendants to submit to the aforesaid arrest and imprisonment and indignities and humiliation thereto entirely against his will.

THIRTY-FOURTH: After unlawfully, maliciously, wantonly, intentionally, carelessly and recklessly detaining and imprisoning the plaintiff, and being negligent and acting not as individuals but under the color of statutes, ordinances, regulations, customs, usages of the City and State of New York, and under the authority of their office as police officers for said City and State, plaintiff was physically detained by the defendants, their agents, servants and employees, with the intent and purpose of humiliating and embarrassing the plaintiff.

THIRTY-FIFTH: Plaintiff did not, either immediately before or at the time he was maliciously and intentionally detained and imprisoned, assaulted and battered, and deprived of his constitutional rights as set forth in the Constitution of the United States of America and the Constitution of the State of New York, commit any illegal act.

THIRTY-SIXTH: All of the actions of the defendants, their agents, servants, and employees were committed with the intention to detain, imprison, and deprive the plaintiff of his rights and liberties as set forth in the Constitution of the United States of America and of the State of New York, all without plaintiff's consent.

THIRTY-SEVENTH: As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, plaintiff was illegally detained and imprisoned and was deprived of his rights and liberties as guaranteed by the Constitution of the United States of America and the Constitution of the State of New York.

THIRTY-EIGHTH: In unlawfully and illegally imprisoning and detaining the plaintiff, and while acting under color of statute, all without cause or justification, the defendants, their agents, servants, and employees were violating plaintiff's rights and depriving him of his

rights and liberties under the laws of the Constitution of the United States and of the State of New York.

THIRTY-NINTH: In unlawfully and illegally imprisoning and detaining the plaintiff, and while acting under color of statute, all without cause or justification, the defendants, their agents, servants, and employees directly violated the rules, regulations, statutes, ordinances and policies of the City and State of New York and those for New York City police officers.

FORTIETH: As a direct and proximate result of the above described unlawful, malicious, and intentional acts of the defendants, their agents, servants, and employees, all committed under color of their authority as police officers, and while acting in that capacity, plaintiff suffered emotional damage which is in violation of his rights and privileges under the laws of the Constitution of the United States, in particular the amendments as set forth above.

FORTY-FIRST: That at all times hereinafter mentioned, the defendants were employed in their respective capacities by the City of New York and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules, and regulations of the City of New York.

FORTY-SECOND: That at all times hereinafter mentioned, the individual defendants were acting pursuant to orders and directives from the defendants and the City of New York.

FORTY-THIRD: That during all times hereinafter mentioned, the defendants, each of them separately and in concert, acted under color and pretense of law, to wit: under color of statutes, ordinances, regulations, customs and usages of the City of New York and defendants herein, separately and in concert, engaged in the illegal conduct herein mentioned to the injury of the plaintiff, and deprived plaintiff of the rights, privileges and immunities secured to plaintiff by

the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States.

FORTY-FOURTH: The police officers of the City of New York and their individual members who are agents and employees of defendants, together with persons unknown to plaintiff, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of illegal harassment, in denial of rights, privileges and immunities guaranteed plaintiff and other citizens by the Constitution of the United States.

FORTY-FIFTH: This systematic pattern of conduct consists of a large number of individual acts of intimidation and humiliation visited on the plaintiff and other citizens by members of the New York City Police Department, its agents, servants and employees of defendant, acting in concert with persons unknown to plaintiff and under color of law and said acts of intimidation and humiliation while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons and property or ensuring civil order.

FORTY-SIXTH: Despite the fact that they knew or should have known of the fact that this pattern of conduct was being carried out by their agents, servants and employees, the defendants have not taken any step or effort to order a halt to this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

FORTY-SEVENTH: The unlawful and illegal conduct of the defendants, their agents, servants, and employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitutions of the United States and of the State

of New York:

- a) the right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and
- b) the right of plaintiff to be informed of the nature and cause of the accusation against him and secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- c) the right of plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

FORTY-EIGHTH: That by reason of the aforesaid violations, false arrest, false imprisonment, and negligence caused by the defendants, their agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, that the defendants, their agents, servants and employees violated 42 U.S.C. §1983 in that persons who under color of any statute, ordinance, regulation, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the City and State of New York, was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn, ridicule, injured in his character and reputation; was prevented from attending his usual business and vocation; was injured in his reputation in the community, and the acts aforementioned were committed with the

aim of injuring and damaging the plaintiff.

FORTY-NINTH: That by reason of the aforesaid, the plaintiff requests the following relief: (a) compensatory damages in the amount of damages which exceeds the jurisdictional limits of all lower courts which would otherwise have had jurisdiction; (b) punitive damages in the amount of damages which exceeds the jurisdictional limits of all lower courts, which would otherwise have had jurisdiction; and (c) an award of reasonable attorneys' fees, costs and disbursements.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum of damages exceeding the jurisdictional limits of all lower courts which would otherwise have had jurisdiction on the FIRST CAUSE OF ACTION; plaintiff demands judgment against the defendants in a sum of damages exceeding the jurisdictional limits of all lower courts which would otherwise have had jurisdiction on the SECOND CAUSE OF ACTION; and, the plaintiff demands a sum of damages exceeding the jurisdictional limits of all lower courts which would otherwise have had jurisdiction on the THIRD CAUSE OF ACTION, including compensatory damages and punitive damages; plaintiff requests a trial by jury of all issues involved in this complaint, together with costs and disbursements of this action and with any other and further relief this Court deems just meet and proper.

Yours, etc.,

THE KATSORHIS LAW FIRM, P.C.
Attorneys for plaintiff JAMIE GRAY
Office and P.O. Address, Telephone
77-53 Main Street
Flushing, New York 11367
(718) 591-6900

ATTORNEY VERIFICATION

NICOLE D. KATSORHIS, ESQ., an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following under the penalties of perjury:

That I am associate in the law firm of THE KATSORHIS LAW FIRM, P.C., attorneys for the plaintiff, JAMIE GRAY, in the within action, and as such, I am fully familiar with the facts and circumstances therein.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to matters therein alleged to be on information and belief, and that as to those matters I believe them to be true. The reason this verification is made by me and not by the plaintiff is that the plaintiff resides outside of the County in which my office conducts its business.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: conversations and correspondence had with the plaintiff and review of the files maintained in our office.

The undersigned attorney affirms the foregoing statements are true, under the penalties of perjury.

Dated: Queens, New York
January 2, 2024


NICOLE D. KATSORHIS

SUPREME COURT OF THE STATE OF NEW YORK: COUNTY OF QUEENS

JAMIE GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ANTHONY MINICHINI,
TAX ID #965342, P.O. MICHAEL DUNN, TAX ID #955894,
and P.O. BRIAN NELSON, TAX ID# 957895,

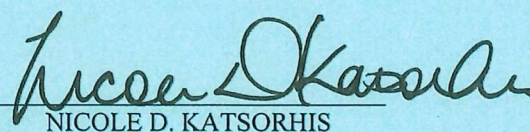
SUMMONS AND VERIFIED COMPLAINT

THE KATSORHIS LAW FIRM, P.C.
Attorneys for Plaintiff
JAMIE GRAY
Office and Post Office Address, Telephone
77-53 Main Street
Flushing, New York 11367
(718) 591-6900
Fax (718)380-8039

ATTORNEY CERTIFICATION

The undersigned, an attorney licensed to practice law in the Courts of New York State, certifies that, upon information, belief and reasonable inquiry, the contentions contained in the above referenced document(s) are not frivolous.

Dated: Queens, New York
January 2, 2024


NICOLE D. KATSORHIS

Counsel:- Please Take Notice☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

20

☐ **NOTICE OF SETTLEMENT**

that an order
settlement to the HON.
of the within named court, at
on

20

at

M.

of which the within is a true copy will be presented for
one of the judges

Dated,

Yours, etc.,

THE KATSORHIS LAW FIRM, P.C.
Attorneys for
Office and Post Office Address
77-53 MAIN STREET
FLUSHING, NEW YORK 11367